

22STCV03098 22STCV03098

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPT:

415

HEARING DATE:

September 23, 2026

CASE NUMBER:

22STCV03098

MOTION:

Motion to Compel Answers to Deposition Questions

MOVING PARTY:

Defendant County of Los Angeles

OPPOSING PARTY:

Deponent Roberto Gonzalez and Plaintiff Rosa Gonzalez

MOTION

Defendant County
of Los Angeles ("Defendant") moves to compel Deponent Roberto Gonzalez
("Deponent") to answer deposition questions.
Deponent and Plaintiff Rosa Gonzalez ("Plaintiff") oppose the motion.

ANALYSIS

Per Code of Civil
Procedure section 2025.480, if a deponent fails to answer any question at
deposition, the party that noticed the deposition may move to compel the
deponent to answer. (Code Civ. Proc., § 2025.480, subd. (a).)

Deponent is the
adult son of Plaintiff. Counsel for Plaintiff
instructed Deponent not to answer questions regarding the marriage of
Plaintiff. Counsel should not instruct a
deponent not to answer any question unless the question implicates a privilege.
(Stewart v. Colonial Western Agency,
Inc. (2001) 87 Cal.App.4th 1006, 1014.) In opposition, Deponent and Plaintiff make no
showing that these questions implicate any privilege. Accordingly, Deponent should have answered
those questions.

In opposition,
Deponent argues that the questions went beyond the scope of this Court's order
of June 24, 2025. In its order of June
24, 2025, the Court ordered the deposition of Deponent, "limited in scope to
Plaintiff's claim for emotional distress and in time to no more than five hours
. . . ." (June 24, 2025 Minute
Order.) Questions regarding Plaintiff's
marriage are pertinent to Plaintiff's claim of emotional distress. Plaintiff contends Defendant's alleged
retaliation against Plaintiff caused emotional distress. Marital issues are potential alternate causes
of Plaintiff's claimed emotional distress.
As such, the questions did not exceed the scope of this Court's order of
June 24, 2025. Furthermore, if Deponent
or Plaintiff believed that Defendant's questions exceeded the permissible scope
of the deposition, the remedy was to suspend the deposition and seek a
protective order. (Code Civ. Proc., §§ 2025.420, subd. (b)(9), 2025.470; Stewart
v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1015.)

Deponent also

argues that Defendant did not attempt to informally resolve this matter prior to filing the motion, as required. (See Code Civ. Proc., § 2016.040.) At deposition, Defendant's counsel informed Plaintiff's counsel and counsel for Deponent of Defendant's position that Deponent must answer the questions. (Declaration of Avi Burkwitz, Exhibit 2, pp. 17-18.) Given the limited and straightforward nature of the dispute, nothing more was required. "[T]he statute requires that there be a serious effort at negotiation and informal resolution." (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1438.) Defendant undertook a serious effort to resolve this dispute at deposition. Defendant's effort suffices.

In connection with his opposition, Deponent submits a declaration, in which he states his answers to the questions Defendant posed at deposition. (Declaration of Roberto Gonzalez in Lieu of Further Deposition Testimony.) However, Deponent's declaration does not moot the motion to compel Deponent to answer deposition questions. The Court cannot deprive Defendant of its right to depose Deponent absent "a showing of good cause" (Armstrong v. Gates (1973) 32 Cal.App.3d 952, 957.) Deponent's wrongful failure to answer deposition questions at the first session of his deposition necessitates the second session. Deponent has not shown good cause not to appear for a second session of deposition. Accordingly, the motion to compel Deponent to answer deposition questions is granted. Deponent is to appear for a second session of deposition within 30 days of notice of this order, unless Defendant stipulates otherwise. The second session of deposition is limited to the questions at issue in this motion, and follow-up questions.

Defendant requests sanctions in connection with this motion. The Court finds Deponent opposed this motion without substantial justification, and awards sanctions. (See Code Civ. Proc., §§ 2025.450, subd. (g)(1), 2025.480, subd. (j).) The Court imposes sanctions against Deponent and his counsel of record, Madruga Law, in the amount of \$1,750, which represents five hours of attorney time to prepare the motion and attend the hearing at \$350 per hour. Deponent and his counsel of record, jointly and severally, are to pay sanctions in the amount of \$1,750 to Defendant, by and through counsel, within 30 days of notice

of this order.

Defendant is ordered

to provide notice of this order and file proof of service of such.